

25STCP04455 25STCP04455

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Case Number: 25STCP04455 Hearing Date: July 17, 2026 Dept: 836

MOTION FOR RECONSIDERATION

Date: 7/17/26

(9:30 PM)

Case: Metropolitan News Co. v. California

Occupational Safety and Health Appeals Board (25STCP04455)

TENTATIVE RULING:

Petitioner Metropolitan News Company's Motion for

Reconsideration is DENIED.

Petitioner Metropolitan News Company seeks reconsideration of the Court's April 20, 2026 Ruling on respondent's demurrer ("Ruling") on the following two grounds: (1) the Ruling does not address the petition to the extent that it is predicated on a claim for violation of due process (Mtn. at 3-4); and (2) the Ruling makes factual assumptions not supported by the record (Mtn. at 4-6). In consideration of the arguments presented, the Court denies the motion for the reasons set forth below.

Pursuant to Code of Civil Procedure § 1008(a), a motion for reconsideration must be brought "within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.) The moving party must present

a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) Petitioner does not base its motion upon any new or different facts, circumstances, or law and does not assert why any different facts had not been presented earlier. Petitioner thus fails to show that it is entitled to relief under CCP § 1008(a).

Notwithstanding this finding, the Court acknowledges that it may on its own motion reconsider a prior order in order to correct an error. (Le Francois v. Goel (2005) 35 Cal.4th 1094, 1106-07; see also CCP § 1008(c).) “[T]he stated legislative purpose behind the 1992 amendment to section 1008 was to conserve judicial resources. . . . Forcing the parties to proceed where there is recognized error in the case would result in an enormous waste of the court’s and the parties’ resources.” (Case v. Lazben Financial Co. (2002) 99 Cal.App.4th 172, 187.)

As for petitioner’s contention that the Ruling should have addressed its due process argument, the Court finds such contention unavailing because courts have found that the failure to exhaust administrative remedies also applies to constitutional challenges. (See Bockover v. Perko (1994) 28 Cal.App.4th 479, 486; see also Roth v. City of Los Angeles (1975) 53 Cal.App.3d 679, 687.) The underlying petition reveals that petitioner had raised its due process argument in addition to its objection pursuant to 8 CCR 375.2. (Pet. Ex. 8.) “Before seeking judicial review a party must show that he has made a full presentation to the administrative agency upon all issues of the case and at all prescribed stages of the administrative proceedings.” (Edgren v. Regents of University of California (1984) 158 Cal.App.3d 515, 520.) Thus, because petitioner did not raise its due process argument with the Appeals Board, he cannot bring such challenge in this Court.

Petitioner also argues that the Court improperly inferred that the Board had delegated the motion to disqualify to the Presiding Administrative Law Judge (“PALJ”). For the reasons stated in the Ruling, the Court is still of the view that the PALJ had authority to act on behalf of the Board with respect to petitioner’s disqualification motion. (Ruling at 5.) But, in any event, as is also explained in the Ruling, even if it were true that the PALJ lacked authority, petitioner still failed to exhaust administrative remedies because, under Labor Code § 6617, petitioner could have sought reconsideration by the Board on the ground that the PALJ’s decision was made in excess of the PALJ’s powers, but

petitioner did not avail itself of that administrative remedy. (Ruling at 6.)

Accordingly, because petitioner has not established that it is entitled to relief under CCP § 1008 and the Court finds that sua sponte relief is not warranted, the motion for reconsideration is DENIED

Having received no objection as to form, the Court will entered the Proposed Judgment for dismissal, received 6/2/26..